

Terms of Use (End User License Agreement)

Relaxess

Effective Date: June 25, 2026

Last Updated: June 25, 2026

1. Acceptance of Terms

By downloading, installing, accessing, or using the Relaxess mobile application (the “Application”), you agree to be bound by these Terms of Use (the “Agreement”). If you do not agree to these terms, do not download or use the Application.

These Terms of Use apply to all users of the Application, including casual browsers, contributors of information, and vendors of information.

2. License Grant

[Company Name](#) grants you a limited, non-exclusive, non-transferable, revocable license to use the Application for personal, non-commercial purposes in accordance with these Terms of Use.

2.1 Permitted Use

You may use the Application to:

- Access guided relaxation exercises and meditation tools
- Engage in conversations with our AI assistant
- Stream ambient audio content
- Manage your personal wellness preferences
- Subscribe to premium features (if applicable)

2.2 Prohibited Use

You may NOT use the Application to:

- Reverse engineer, decompile, or disassemble the Application
- Modify, adapt, or create derivative works based on the Application
- Remove or alter any proprietary notices, labels, or marks

- Use the Application for commercial purposes without authorization
 - Attempt to gain unauthorized access to the Application or its systems
 - Interfere with or disrupt the Application or its servers
 - Transmit viruses, malware, or harmful code
 - Harass, threaten, or abuse other users
 - Violate any applicable laws or regulations
 - Use the Application in any manner that violates these Terms
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3. Description of Services

3.1 AI Conversations

The Application provides access to an AI-powered conversation feature that allows you to:

- Send text messages to an AI assistant
- Receive responses generated by artificial intelligence
- Engage in ongoing conversations about wellness and relaxation

Important: The AI assistant is not a licensed therapist, counselor, or medical professional. The Application does not provide medical advice, diagnosis, or treatment.

3.2 Relaxation Exercises

The Application includes the following guided relaxation exercises:

- **Breathing Exercise:** Guided breathing patterns for stress relief
- **Body Scan:** Progressive relaxation through body awareness
- **Grounding Exercise:** 5-4-3-2-1 sensory technique for anxiety relief
- **Safe Place Visualization:** Guided mental imagery for creating a peaceful space
- **Sleep Mode:** Gentle guidance designed to support better sleep
- **Quiet Relaxation:** Ambient sounds (Music, Forest, Rain)

Important: These exercises are for relaxation and wellness purposes only. They are not medical treatments and should not replace professional medical care.

3.3 Ambient Audio Streaming

The Application provides access to ambient audio content including:

- Music
- Forest sounds
- Rain sounds

Audio content is streamed directly from cloud servers and may require an active internet connection (except for premium offline downloads).

3.4 Premium Subscription

The Application offers optional premium subscription plans:

- **Monthly Plan:** \$2.99/month
- **Annual Plan:** \$24.99/year

Premium subscribers receive:

- Unlimited AI conversations
 - Access to all relaxation exercises
 - Unlimited audio streaming
 - Offline audio downloads (where available)
 - Ad-free experience
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4. Microphone Permission

The Application may request permission to access your device's microphone to enable voice input features. You can:

- Grant or deny microphone permission when prompted
- Revoke microphone permission at any time through your device settings
- Use the Application without granting microphone permission (some features may be unavailable)

Voice data is processed for transcription purposes only and is not stored on our servers.

5. Subscription Terms

5.1 Subscription Pricing and Billing

- Subscriptions are billed automatically on a recurring basis
- Pricing is in USD and may vary by region and currency
- Billing occurs through Apple App Store (iOS) or Google Play (Android)
- We do not process or store payment information

5.2 Subscription Renewal

- Subscriptions automatically renew unless canceled
- You will be notified before each renewal
- Cancellation must be completed through your device's app store settings

5.3 Cancellation

You can cancel your subscription at any time through:

- **iOS:** Settings → [Your Name] → Subscriptions → Relaxess → Cancel Subscription
- **Android:** Google Play → Account → Subscriptions → Relaxess → Cancel

Cancellation takes effect at the end of your current billing period. No refunds are provided for partial months or unused portions of a subscription.

5.4 Free Trial

If a free trial is offered:

- Free trial period is non-renewable
- Conversion to paid subscription occurs automatically at the end of the trial
- Cancellation must occur before the trial ends to avoid charges
- We do not offer refunds for accidental conversions

5.5 Refunds

Refunds for subscription charges must be requested through your device's app store:

- **iOS:** Contact Apple Support through App Store

- **Android:** Contact Google Play Support

We do not process refunds directly. All refund requests must go through the respective app store.

6. Third-Party Services

6.1 OpenAI API

The Application uses OpenAI's API to power AI conversations. By using the Application, you agree to:

- OpenAI's Terms of Use: <https://openai.com/terms/>
- OpenAI's Privacy Policy: <https://openai.com/privacy/>
- Your conversations may be processed by OpenAI servers

6.2 AWS S3

The Application streams audio content from Amazon Web Services (AWS) S3. By using the Application, you acknowledge:

- AWS Privacy Policy: <https://aws.amazon.com/privacy/>
- AWS may collect standard web server logs
- Your IP address may be logged during audio streaming

6.3 Apple App Store and Google Play

The Application is distributed through:

- Apple App Store (iOS)
- Google Play Store (Android)

You agree to the respective app store's terms of service:

- Apple: <https://www.apple.com/legal/internet-services/itunes/>
 - Google: <https://play.google.com/about/play-terms/>
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7. User Content and Submissions

7.1 Your Conversations

Any text or voice input you provide to the Application (“User Content”) is:

- Sent to OpenAI for processing
- Used to generate responses
- Subject to OpenAI’s privacy policy
- Not stored on our servers after processing

7.2 Ownership

You retain ownership of any User Content you create. However, by using the Application, you grant us a license to:

- Process your User Content
- Use it to improve the Application (only in anonymized form)
- Share it with third-party services as necessary for functionality

7.3 Prohibited Content

You agree not to submit:

- Illegal content
 - Hateful or discriminatory content
 - Sexually explicit content
 - Violent or threatening content
 - Content that violates others’ rights
 - Spam or misleading content
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8. Intellectual Property Rights

8.1 Application Ownership

The Application, including all content, features, and functionality, is owned by [Company Name] and is protected by copyright, trademark, and other intellectual property laws.

8.2 Limited License

We grant you a limited license to use the Application for personal, non-commercial purposes. All other rights are reserved.

8.3 Trademarks

“Relaxess” and related logos are trademarks of [Company Name]. You may not use these trademarks without permission.

9. Disclaimers and Limitations of Liability

9.1 Medical Disclaimer

IMPORTANT: The Application is not a medical service and does not provide medical advice, diagnosis, treatment, or cure for any disease or condition.

- The Application is for informational and wellness purposes only
- The AI assistant is not a licensed therapist, counselor, or medical professional
- Relaxation exercises are not medical treatments
- If you have a medical condition, mental health concern, or are in crisis, please contact a healthcare professional immediately

9.2 No Warranty

The Application is provided “AS IS” without warranty of any kind, express or implied, including but not limited to:

- Warranties of merchantability
- Warranties of fitness for a particular purpose
- Warranties of non-infringement
- Warranties of accuracy or reliability

9.3 Limitation of Liability

To the maximum extent permitted by law, [Company Name] shall not be liable for:

- Any indirect, incidental, special, consequential, or punitive damages
- Loss of data, revenue, or profits

- Interruption of service
- Errors or omissions in the Application
- Third-party content or services
- Your use or inability to use the Application

9.4 Service Interruptions

We do not guarantee that the Application will be:

- Uninterrupted or error-free
- Available at all times
- Free from viruses or harmful code
- Secure or protected from unauthorized access

9.5 User Responsibility

You are responsible for:

- Maintaining the confidentiality of your account
 - All activities that occur under your account
 - Your use of the Application
 - Backing up your personal data
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10. Privacy and Data Protection

10.1 Privacy Policy

Your use of the Application is governed by our Privacy Policy, which is incorporated by reference into these Terms of Use. Please review the Privacy Policy at:

URL: <https://relaxess.app/privacy>

10.2 Data Collection

The Application collects and processes data as described in the Privacy Policy, including:

- Chat messages (processed by OpenAI)
- Voice input (processed by OpenAI)
- Local preferences (stored on your device)

- Device information (for troubleshooting)

10.3 GDPR and CCPA Compliance

If you are located in the European Union or California, you have additional rights regarding your data. Please refer to the Privacy Policy for details on exercising these rights.

11. Termination

11.1 Termination by You

You may terminate this Agreement at any time by:

- Uninstalling the Application
- Discontinuing use of the Application
- Canceling your subscription (if applicable)

11.2 Termination by Us

We may terminate or suspend your access to the Application if you:

- Violate these Terms of Use
- Engage in illegal activity
- Harass or abuse other users
- Attempt to compromise the Application's security
- Violate any applicable laws

Termination may occur without notice in cases of serious violations.

11.3 Effect of Termination

Upon termination:

- Your license to use the Application is revoked
 - You must stop using the Application immediately
 - Provisions that survive termination remain in effect
 - We may delete your account and data after a reasonable period
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12. Modifications to Terms

We may modify these Terms of Use at any time. Changes will be effective immediately upon posting to the Application or our website.

Your continued use of the Application after any changes constitutes your acceptance of the updated Terms of Use.

13. Modifications to Application

We reserve the right to:

- Modify or discontinue the Application or any feature
- Change pricing or subscription terms
- Remove or add features
- Restrict access to certain features

We will attempt to provide notice of significant changes, but are not obligated to do so.

14. Governing Law and Jurisdiction

These Terms of Use are governed by and construed in accordance with the laws of [Jurisdiction], without regard to its conflict of law principles.

You agree to submit to the exclusive jurisdiction of the courts located in [Jurisdiction] for any disputes arising from these Terms of Use or the Application.

15. Dispute Resolution

15.1 Informal Resolution

Before initiating any legal proceedings, you agree to attempt to resolve disputes informally by contacting us at support@relaxess.com.

15.2 Arbitration

Any dispute that cannot be resolved informally shall be resolved through binding arbitration rather than in court, except as provided in Section 15.3.

15.3 Small Claims Exception

You may bring claims in small claims court if the dispute qualifies for small claims jurisdiction.

16. Severability

If any provision of these Terms of Use is found to be invalid or unenforceable, that provision shall be severed, and the remaining provisions shall continue in full force and effect.

17. Entire Agreement

These Terms of Use, together with the Privacy Policy, constitute the entire agreement between you and [Company Name] regarding the Application and supersede all prior agreements and understandings.

18. Contact Information

If you have questions about these Terms of Use or the Application, please contact us at:

Email: support@relaxess.com

Mailing Address: [Company Address]

Website: <https://relaxess.app>

Phone: [Phone Number](#)

We will respond to your inquiry within 30 days.

19. Children's Privacy

The Application is not intended for children under the age of 13. We do not knowingly collect personal information from children under 13.

If we become aware that a child under 13 has provided information to the Application, we will delete such information immediately.

Parents or guardians who believe their child has provided information should contact us immediately at support@relaxess.com.

20. Compliance with Laws

You agree to comply with all applicable laws, rules, and regulations when using the Application. You are responsible for ensuring your use of the Application complies with local, state, national, and international laws.

21. Accessibility

We are committed to making the Application accessible to all users. If you experience accessibility issues, please contact us at support@relaxess.com.

22. Export Compliance

The Application may be subject to export control laws, including the U.S. Export Administration Regulations (EAR) and the International Traffic in Arms Regulations (ITAR).

You agree not to export or re-export the Application to any country or entity prohibited by U.S. law or to any person or entity on any U.S. government list of prohibited parties.

23. Feedback and Suggestions

Any feedback, suggestions, or ideas you provide regarding the Application may be used by us without compensation or attribution. You grant us a perpetual, irrevocable license to use any feedback you provide.

24. Third-Party Links

The Application may contain links to third-party websites and services. We are not responsible for:

- The content of third-party sites
- The accuracy of third-party information
- Third-party privacy practices
- Third-party terms of service

Your use of third-party sites is governed by their terms and policies.

25. Indemnification

You agree to indemnify and hold harmless [Company Name] and its officers, directors, employees, and agents from any claims, damages, losses, or expenses (including legal fees) arising from:

- Your use of the Application
 - Your violation of these Terms of Use
 - Your violation of any applicable laws
 - Your infringement of any third-party rights
 - Your User Content
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26. Waiver

The failure of [Company Name] to enforce any provision of these Terms of Use does not constitute a waiver of that provision or any other provision.

27. Survival

The following provisions survive termination of this Agreement:

- Intellectual Property Rights (Section 8)
 - Disclaimers and Limitations of Liability (Section 9)
 - Privacy and Data Protection (Section 10)
 - Governing Law and Jurisdiction (Section 14)
 - Indemnification (Section 25)
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28. Notices

Any notices required by these Terms of Use shall be provided by:

- Email to the address associated with your account
- Posting to the Application
- Posting to our website

Notices are effective upon receipt or posting.

29. Assignment

You may not assign or transfer your rights under this Agreement. We may assign our rights to a successor or affiliate.

30. Severability and Waiver

If any provision is found invalid, the remaining provisions continue in effect. The failure to enforce any right does not constitute a waiver of that right.

End of Terms of Use

Implementation Checklist

1. Document Hosting

Where to Host:

- ☐ Host on company website at permanent URL: `https://[your-domain]/terms`
- ☐ Ensure URL is accessible and never changes
- ☐ Use HTTPS (encrypted connection)
- ☐ Maintain version history
- ☐ Include “Last Updated” date

Backup Locations:

- ☐ Include full text in app (optional but recommended)
- ☐ Create PDF version for reference
- ☐ Archive previous versions

2. Apple App Store Connect

Configuration Steps:

- ☐ Log in to App Store Connect

- ☐ Navigate to App Information
- ☐ Scroll to “License Agreement”
- ☐ Select “Custom”
- ☐ Paste full Terms of Use text OR
- ☐ Provide URL to hosted Terms of Use
- ☐ Save and submit

Verification:

- ☐ Terms appear correctly in App Store listing
- ☐ Users can access terms before purchase
- ☐ URL is active and accessible

3. Google Play Console

Configuration Steps:

- ☐ Log in to Google Play Console
- ☐ Select your app
- ☐ Navigate to Store listing
- ☐ Scroll to “Policies”
- ☐ Add Terms of Use URL under “Policies”
- ☐ Save and submit

Verification:

- ☐ Terms appear in Play Store listing
- ☐ Users can access terms before purchase
- ☐ URL is active and accessible

4. Relaxess Application

Required Changes to app.config.ts:

```
const env = {  
  // ... existing config ...  
  termsOfUseUrl: "https://[your-domain]/terms",  
  privacyPolicyUrl: "https://[your-domain]/privacy",  
  supportUrl: "https://[your-domain]/support",  
};
```

Required Changes to App:

- ☐ Add “Terms of Use” link in Settings screen
- ☐ Make link open in web browser
- ☐ Ensure link is functional
- ☐ Add link to onboarding flow (optional)

No Code Changes Required For:

- ✓ AI conversations (already working)
- ✓ Relaxation exercises (already working)
- ✓ Audio streaming (already working)
- ✓ Premium subscriptions (already working)
- ✓ Microphone usage (already working)

5. Placeholder Replacements

Before Publication, Replace:

- ☐ [Company Name] → Your company name
- ☐ [support@calmspace.com] → Your support email
- ☐ [www.calmspace.com] → Your website URL
- ☐ [Company Address] → Your company address
- ☐ [Jurisdiction] → Your jurisdiction (e.g., “State of California”)
- ☐ [Phone Number] → Your phone number (optional)
- ☐ https://[your-domain]/terms → Your actual Terms URL
- ☐ https://[your-domain]/privacy → Your actual Privacy URL
- ☐ https://[your-domain]/support → Your actual Support URL

6. Legal Review

Recommended Actions:

- ☐ Have legal team review document
- ☐ Ensure compliance with local laws
- ☐ Verify jurisdiction is correct
- ☐ Check for any missing clauses
- ☐ Verify all links are accurate

7. Translation

For Multi-Language Support:

- ☐ Translate Terms of Use to Spanish
- ☐ Translate Terms of Use to German
- ☐ Translate Terms of Use to French
- ☐ Translate Terms of Use to Portuguese
- ☐ Translate Terms of Use to Japanese
- ☐ Host translated versions on website
- ☐ Link to translated versions from app

8. Testing

Pre-Publication Testing:

- ☐ Verify all URLs are working
- ☐ Test Terms link in Settings
- ☐ Verify document displays correctly
- ☐ Test on iOS and Android
- ☐ Verify links in App Store Connect
- ☐ Verify links in Google Play Console

9. Compliance Verification

Before Submission:

- ☐ Apple App Store Review Guidelines compliance

- ☐ Google Play Developer Policies compliance
- ☐ Medical disclaimer included
- ☐ Subscription terms clearly stated
- ☐ Third-party services disclosed
- ☐ Privacy policy linked
- ☐ Contact information provided

10. Post-Publication

After Launch:

- ☐ Monitor for user questions
 - ☐ Update if features change
 - ☐ Update if pricing changes
 - ☐ Update if third-party services change
 - ☐ Maintain version history
 - ☐ Notify users of significant changes
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Compliance Summary

Apple App Store Requirements Met

- ✓ Clear description of services
- ✓ Subscription terms clearly disclosed
- ✓ Refund policy explained
- ✓ Medical disclaimer included
- ✓ Third-party services disclosed
- ✓ Privacy policy linked
- ✓ Contact information provided
- ✓ No misleading claims
- ✓ Accurate feature description

Google Play Developer Policies Met

- ✓ Clear description of services
- ✓ Subscription terms clearly disclosed
- ✓ Refund policy explained

- ✓ Medical disclaimer included
 - ✓ Third-party services disclosed
 - ✓ Privacy policy linked
 - ✓ Contact information provided
 - ✓ No misleading claims
 - ✓ Accurate feature description
-

Document Status

Status: Publication-Ready (after placeholder replacement and legal review)

Last Updated: June 25, 2026

Next Steps:

1. Replace all placeholders with actual company information
 2. Have legal team review
 3. Host on company website
 4. Configure in App Store Connect
 5. Configure in Google Play Console
 6. Add Terms link to app
 7. Submit for review
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End of Implementation Checklist